

The Claremont City Council held a meeting on Wednesday, November 9, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

A motion was made by Councilor Koloski and seconded by Councilor Stone to Suspend council rules to add an agenda item.

Roll call:

O’Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Councilor Koloski added a new agenda item under “New Business” I: Councilor Contois Conduct.

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept the minutes of the October 26, 2022, City Council meeting.

Voice vote:

O’Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

MAYOR’S NOTES

Mayor Girard noted there was a large turnout, 67% of registered voters in our community, the mayor thanked everyone involved in the election process.

CITY MANAGER’S REPORT

None.

APPOINTMENT TO BOARDS AND COMMITTEES

Fisk Free Library Board of Trustees

A motion was made by Councilor Batchelder and seconded by Councilor Koloski to appoint Arthur Vidro to Seat 5 of the Fisk Free Library Board of Trustees.

Voice vote:

O’Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes
Girard - yes
Motion carried 9-0

Historic District Commission

A motion was made by Councilor Koloski and seconded by Councilor Stone to appoint Jill Chastenay to Seat 3 of the Historic District Commission.

Voice vote:
O’Hearne - yes
Batchelder- yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

CITIZEN’S FORUM

Mayor Girard reminded all that they may speak for 5 minutes on non-agenda items during Citizens Forum.

Co-owner of DAMN Enterprises LLC, at 27-45 Pleasant Street also known as, Odd Fellows Hall and Bakers Block, this co-owner shared concern for only one roof drain being installed during the Pleasant Street Project on the Odd Fellows building but not the Bakers Block building. Co-Owner also noted concern on trying to work with the City since June of 2022. Mr. Manale will work to help resolve the issue.

Roberta Hood, aka: Robin Hood, Ward 1, shared concern for lack of adequate and easy handicapped accessibility. Ms. Hood filed a grievance with NH Governor’s Commission on Disability.

Councilor Contois stepped away from table to introduce a non-citizen.

James Contois, Ward 2, Introduced Tara Tilton and Daughter.

Tara Tilton, Girl Scout Leader of 30261 and Product Manager Liaison for service unit 213

Has been leading girls in surrounding towns for nine years, and is proud for all they have accomplished.

Kayleigh, a student at Stevens High School, working towards a gold award for girl scouts; which is the highest award a girl scout can earn. Kaleigh is involved in a take action program which identifies a problem in the City and solves it. Kayleigh identified litter being a problem and to help solve the litter problem, five litter kiosks will be placed in City Parks.

Rebecca Mackenzie, Ward 2, read from their following letter:

“City Council. Wetlands Citizen’s Forum Submission. 11.9.22

Wetlands are important in the landscape because they provide numerous benefits to people and wildlife.

They are among the most productive ecosystems in the world, comparable to rain forests and coral reefs. An immense variety of species of microbes, plants, insects, amphibians, reptiles, birds, fish and mammals can be part of a wetland ecosystem.

Wetlands can be thought of as "biological supermarkets." They provide great volumes of food that attract many animal species. These animals use wetlands for part of or all of their life-cycle.

Wetlands play an integral role in the ecology of the watershed. The combination of shallow water, high levels of nutrients and primary productivity is ideal for the development of organisms that form the base of the food web and feed many species of amphibians, insects, fish and mammals. Many species of birds and mammals rely on wetlands for food, water and shelter, especially during migration and breeding. An international agreement to protect wetlands of international importance was developed because some species of migratory birds are completely dependent on certain wetlands and would become extinct if those wetlands were destroyed.

Many song-birds, as well as other iconic bird species, -- feed, nest and raise their young in wetlands. The red-winged blackbirds nesting in the wetlands on Charlestown Rd. are a favorite of many.

Wetlands' microbes, plants and wildlife are part of global cycles for water, nitrogen and sulfur. Scientists now know that atmospheric maintenance is an additional wetlands function. Wetlands store carbon within their plant communities and soil instead of releasing it to the atmosphere as carbon dioxide. Thus wetlands help to moderate global climate conditions.

Wetlands provide values that no other ecosystem can. These include natural water quality

improvement, flood protection, shoreline erosion control, opportunities for recreation and aesthetic appreciation. Protecting wetlands can protect our safety and welfare.

I admire that my husband tried to connect with Mr. Gomes of the Ford Garage to seek an alternative solution two years ago about disturbing the wetland on the Charlestown Road. Mr. Gomes did not respond to this invitation. I admire my husband for trying to bring the NH DES hearing to Claremont so others in Claremont could speak to this concern, which was denied. I admire that he provided testimony at the NH DES hearing in Concord to try and seek an alternative solution to continuing to damage the wetlands. I admire the Claremont Conservation Commission for providing testimony at the hearing to seek an alternative solution. When the permit was granted for Mr. Gomes to build over the wetlands, I admire that my husband who submitted an appeal to see if there could be an alternative solution, but Mr. Gomes has gone ahead with his construction plan.

Our Master Plan notes the term “wetlands” 29 times and our Natural Resource Inventory identifies wetlands repeatedly as a very important part of our natural wealth.

Instead of questioning my husband’s right to speak up for his concerns as a citizen and resident in Claremont, I would like the Council to recognize his concern for the natural wealth of our community as a positive action, and for all of us to protect our right to speak up and protect our natural wealth fiercely. Our wild places are disappearing, along with our wildlife. We need to protect our natural wealth, especially when there are alternative solutions to development.

Rebecca MacKenzie, Ward II, submitted during Citizen’s Forum on 11/9/2022 Most of these facts come from EPA.gov website”

Christian Gomes, Owner of Ford Garage shared concern over inflammatory comments at the last Council Meeting. Mr. Gnomes noted comments were made prior to knowing Mr. Contois was appealing.

OLD BUSINESS

Ordinance 601 – Elderly Exemption

Mr. Hamilton, explained Ordinance 601.

A motion was made by Councilor Batchelder and seconded by Assistant Mayor Matteau to suspend Council Rules and read the explanation of proposed action into record instead of the entire Ordinance.

Voice vote:
O’Hearne -no
Batchelder- yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 8-1

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #601

PROPERTY TAX EXEMPTIONS FOR ELDERLY

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 72:27-a, RSA 72:39-a and RSA 72:39-b, the Claremont City Code is hereby amended to revise Article II, Division 4 of Chapter 18 as follows:

Section 1. Property Tax Exemption for Elderly

Sec. 18-58. Exemption amount and qualifications.

Revise the introductory paragraph, of Section 18-58, to read as follows:

In accordance with RSA 72:39-a and RSA 72:39-b, the city shall provide an exemption from real estate taxes, beginning in the tax year commencing April 1, 2023, for those individuals qualified for such exemption under RSA 72:39-a and RSA 72:39-b, as they may be amended from time to time, in the following manner:

Section 2. Exemption amount and qualifications

Sec. 18-58 (4). Exemption amount and qualifications.

Revise Subsection (4) of Section 18-58 to increase the qualifying net income and asset limits so that the provision shall read as follows:

- (4) To qualify, an unmarried taxpayer must have a net income of not more than twenty-five thousand five hundred dollars (\$25,500), or if married, must have a combined net income of not more than thirty-three thousand seven hundred dollars (\$33,700). Net assets for either an unmarried taxpayer or, if married, combined assets must be not more than sixty-nine thousand seven hundred dollars (\$69,700), exclusive of the value of the taxpayer's residence and the land upon which it is located up to the greater of two (2) acres or the minimum single-family residential lot specified in the Claremont Zoning Ordinance for the zone in which the property lies. The combined net asset amount shall apply to a surviving spouse until the sale or transfer of the property by the surviving spouse or until the remarriage of the surviving spouse.

Section 3. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 18, Article II, Division 4, Section 18-58 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 4. Validity.

If any article, section, subsection, sentence, clause or phrase of this ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this ordinance.

Section 5. Effective Date.

This Ordinance shall take effect for purposes of accepting applications under the increased limits immediately upon passage and shall be enforced for property tax exemptions for the elderly for the tax year commencing April 1, 2023.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to adopt Ordinance 601.

Councilor Koloski read explanation of proposed action into record.

Mayor Girard opened a public hearing.

Roberta Hood, Ward 1, asked where this information can be found.

Mr. Hamilton responded the City Website in the Assessing section has extensive information for exemptions.

Councilor Contois reminded all that Assessing is available for in-person information as it can be intimidated for the elderly to find this information online.

Mayor Girard closed the public hearing.

Roll call:

O’Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Ordinance 602 – Disability Exemption, Second Reading

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #602

PROPERTY TAX EXEMPTION FOR THE DISABLED

The City of Claremont Ordains:

Pursuant to New Hampshire RSA 72:27-a and RSA 72-37-b, the Claremont City Code is hereby amended to revise Article II, Division 3 of Chapter 18 as follows:

Section 1. Property Tax Exemption for the Disabled

Sec. 18-53. Exemption for the disabled.

Revise Subsection (a) (2) and (3) of Section 18-53 to modify the annual net income and asset qualification standards as well as to eliminate proceeds from social security benefits from the categories of exclusion under the calculation of eligibility to read as follows:

- (2) Applicant must have had, in the calendar year preceding April 1 of the year in which the exemption is claimed, an annual net income from all sources of less than twenty-two thousand eight hundred dollars (\$22,800), if single, [or] a combined annual net income of less than thirty thousand eight hundred dollars (\$30,800), if married. Such net income is to be determined by deducting from all monies received from any source whatsoever the amount or sum of any life insurance paid on the death of an insured, expenses and costs incurred in the course of conducting a business enterprise, [and/or] proceeds from the sale of assets; and
- (3) Applicant's net assets, as defined in RSA 72:37-b III(b), excluding the value of the residence and the land upon which it is located up to the greater of two (2) acres or the minimum single family residential lot size for that zone as specified in the city's zoning ordinance, must not exceed forty thousand seven hundred dollars (\$40,700).

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 18, Article II, Division 3, Section 18-53 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect for purposes of accepting applications under the increased limits immediately upon passage and shall be enforced for property tax exemptions for the disabled for the tax year commencing April 1, 2023.

A motion was made by Councilor O' Hearne and seconded by Councilor Koloski to adopt Ordinance 602.

Councilor O'Hearne read Ordinance 602 into the record.

Mayor Girard opened for a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O'Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

NEW BUSINESS

Sullivan County Commissioner Updates

Sullivan County Commissioner, Osgood, and County Manager, Ferland presented talking points to the Council on the following topics:

Nursing Home renovation project, The Sullivan House, HUD Lead Paint Abatement Program, Discovering Sugar River Region, Trails Projects, Natural Resources and Conservation District Programs highlighting the Sullivan County Public Cidery, and County Trails, Claremont Growers Collective, Comprehensive Economic Development Strategy, County Grant Writing Capability, Adult Education Courses, and Community Development Block Grants.

Resolution 2023-16 SBG 02-22-2022 ARPA O&M

Chief Burr, explained resolution 2023-16

RESOLUTION 2023-16

SBG 02-22-2022 ARPA (American Rescue Plan Act) O&M Grant

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont has been awarded a grant from ARPA (American Rescue Plan Act) O&M Grant in the amount of \$32,000.00 to reimburse the City's Municipal Airport for operational expenses; and

WHEREAS the City would like to accept and transfer grant funds to the Airport Special Reserve Fund.

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the ARPA (American Rescue Plan Act) O&M grant (SBG-02-22-2022) in the amount of \$32,000.00 from the ARPA (American Rescue Plan Act); and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

A motion was made by Councilor Mooshian and seconded by Councilor O'Hearne to adopt resolution 2023-16.

Councilor Mooshian read resolution 2023-16 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O'Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

Sugar River Dr. Tax Lien Map 158, Lot 6

Director Merrill described a property in Claremont at 36 Sugar River Drive. Ms. Merrill noted there was a fire at the house in 2013, the property was sold at auction, there was partial demolition without removal of asbestos. Ms. Merrill introduced Mr. Brooks.

Kelvin Allen Brooks, Senior Assistant Attorney General, Chief of the Environmental Protection Bureau joined Council via zoom presenting a discussion on the current status of 36 Sugar River Drive.

Mr. Brooks added there may be someone willing to buy the property and remove the asbestos but this is unlikely if there is a tax lien. Mr. Brooks wants the City to consider removing the tax lien, and allow the sale to go through court supervision.

A motion was made by Councilor Koloski and seconded by Councilor Stone to authorize the City Manager and their designee to negotiate a remediation action with Kelvin Brooks.

Roll call:
O'Hearne - yes
Batchelder - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

Ordinance 600 Accessory Dwelling Units

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #600

ZONING ORDINANCE AMENDMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Duplex, multi-family, and accessory dwelling unit regulations and approvals.

Revise and renumber portions of Chapter 22, Zoning Ordinance, to require approval for duplexes, multi-family conversions and accessory dwelling units (ADUs) by conditional use permit rather than by special exception, to clarify that manufactured housing may not be used as a duplex, to permit ADUs by conditional use permit in all residential districts, to allow detached ADUs under certain conditions, and to establish and amend owner residency requirements and other conditions for ADUs, as follows:

Sec. 22-1. Definitions.

Accessory dwelling unit (ADU) shall mean a residential living unit that is within or attached to an owner-occupied single-family dwelling unit, or that is in a detached building or structure on the same lot, that is not "manufactured housing" as defined by RSA 205-A or a mobile home, and that provides independent living facilities for one (1) or more persons, including provisions for sleeping, eating, cooking, and sanitation on the same parcel of land as the principal dwelling unit it accompanies.

Duplex shall mean a single residential structure containing two (2) dwelling units or two (2) dwelling units which are separated by a common wall, no part of which consists of manufactured housing as defined herein, neither of which dwelling unit is accessory, incidental, or subordinate to the other, and which dwelling units may be separately owned. A duplex by definition is not an accessory dwelling unit.

Insert new Section after Sec 22-146:

Sec. 22-147. Conditional use permits.

The following uses may be permitted in the agricultural residential district by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

- (1) Duplexes.

(2) ADUs, subject to the regulations contained in section 22-513.

Sec. 22-148. Special exceptions.

The following uses may be permitted in the agricultural residential district by the zoning board of adjustment subject to the regulations contained in section 22-56 et seq., as well as any other applicable regulations of this chapter or regulations of the state, and the following conditions or safeguards.

- (1) Overnight camping areas, provided they are in conformance with all local and state regulations.
- (2) Sawmills, provided that they are located at least one thousand (1,000) feet from any existing dwelling.
- (3) Gravel processing plants not including rock crushing operations, provided that the processing plants are located at least three hundred (300) feet from any existing residence and two hundred (200) feet from any highway; rock drilling for industrial purposes provided that the drilling operations are located at least seven hundred (700) feet from any existing residence and highway; and rock crushing operations provided that the operations are located at least one thousand five hundred (1,500) feet from any existing residence and highway and further provided:
 - a. That any gravel processing operation or rock crushing operation conform to the provisions contained in section 22-507; and
 - b. That any of the above uses must be located on lots of at least ten (10) acres and such uses shall be subject to such other conditions as the zoning board of adjustment may determine to be essential to provide screening from abutting properties or to prevent excessive noise, dust, vibration or traffic congestion.
- (4) Outdoor recreation such as ski areas, golf courses, riding stables, snowmobiling or similar activities which:
 - a. Are not conducted primarily for spectator sports; and
 - b. Do not provide overnight accommodations.
- (5) Kennels for keeping of four (4) or more dogs, provided that the dogs are kept at least three hundred (300) feet from existing dwellings.
- (6) Home occupations.
- (7) Sale of camping equipment and supplies on the grounds of a campground.
- (8) Planned residential development in accordance with the provisions contained in section 22-571 et seq.
- (9) Accessory uses and buildings.
- (10) Extraction of sand and gravel.

- (11) Where the boundary line of a zoning district divides a lot in single or joint ownership the regulations for either district may extend to the entire lot, but in no case shall any permitted use be extended more than seventy-five (75) feet into the zoning district which prohibits uses allowed in the abutting district. The provisions of this section shall benefit only those lots shown on the Tax Maps of the City of Claremont as existing on the date of passage of this amendment [June 11, 1997]. The boundary line of a zoning district may not be extended under any circumstances beyond the boundary of the lot appearing on said tax maps. The city planning department shall keep on record for public use all tax maps referred to in this subsection.

Renumber up to Sec 22-153.

Insert new section after Sec 22-166:

Sec. 22-167. Conditional use permits.

The following uses may be permitted in the rural residential district by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

- (1) Duplexes.
- (2) ADUs, subject to the regulations contained in section 22-513.

Sec. 22-168. Special exceptions.

The following uses may be permitted in the rural residential district by the zoning board of adjustment subject to the regulations contained in section 22-56 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Sawmills provided they are located at least one thousand (1,000) feet from any existing dwelling.
- (2) Gravel processing plants not including rock crushing operations, provided that the processing plants are located at least three hundred (300) feet from any existing residence and two hundred (200) feet from any highway; rock drilling for industrial purposes provided that the drilling operations are located at least seven hundred (700) feet from any existing residence and highway; and rock crushing operations provided that the operations are located at least one thousand five hundred (1,500) feet from any existing residence and highway and further provided:
 - a. That any gravel processing operation or rock crushing operation conform to the provisions contained in section 22-507; and

- b. That any of the above uses must be located on lots of at least ten (10) acres and such uses shall be subject to such other conditions as the zoning board of adjustment may determine to be essential to provide screening from abutting properties or to prevent excessive noise, dust, vibration or traffic congestion.
- (3) Automobile and machinery junk yards provided that:
 - a. They are located at least two hundred (200) feet from any lot line.
 - b. The area is adequately screened from public view on the front and side yards by natural vegetation or fencing to a minimum height of six (6) feet.
 - c. The operation conforms to any other applicable regulations of the city and the state.
- (4) Hotels, motels, inns, cabins, or other transient lodgings, provided that:
 - a. They are located on a lot of at least four (4) acres plus an additional land area of three thousand (3,000) square feet for each unit.
 - b. They have a minimum of four hundred (400) feet of frontage and are located within one thousand (1,000) feet of a state highway.
 - c. They are set back a minimum of one hundred (100) feet from any lot line.
- (5) Slaughter houses provided they are located at least one thousand (1,000) feet from any existing dwelling.
- (6) Farms for the raising of four (4) or more pigs, provided that the pigs are fed with grain only and kept at least one thousand (1,000) feet from any dwelling.
- (7) Kennels for the raising of four (4) or more dogs, provided that the dogs are kept at least three hundred (300) feet from any existing dwelling.
- (8) Antique shops, provided there is no outside display of stock-in-trade.
- (9) Planned residential development in accordance with the provisions contained in article VI of this chapter.
- (10) Accessory uses and buildings.
- (11) Home occupations.
- (12) Extraction of sand and gravel.
- (13) Where the boundary line of a zoning district divides a lot in single or joint ownership the regulations for either district may extend to the entire lot, but in no case shall any permitted use be extended more than seventy-five (75) feet into the zoning district which prohibits uses allowed in the abutting district. The provisions of this subsection shall benefit only those lots shown on the Tax Maps of the City of Claremont as existing on the date of passage of this amendment [June 11, 1997]. The boundary line of a zoning district may not be extended under any circumstances beyond the boundary of the lot appearing on said tax maps. The city planning department shall keep on record for public use all tax maps referred to in this subsection.

(14) Golf courses.

Renumber up to Sec 22-174

Insert new section after Sec 22-186:

Sec. 22-187. Conditional use permits.

The following uses may be permitted in the rural residential district II by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

- (1) Duplexes.
- (2) ADUs, subject to the regulations contained in section 22-513.

Sec. 22-188. Special exceptions.

The following uses may be permitted in the rural residential district II by the zoning board of adjustment subject to the regulations contained in division 3 of article II of this chapter, as well as any other applicable regulations of this chapter or regulations of the state, and the following conditions and safeguards.

- (1) Hotels, motels, inns, cabins, or other transient lodgings, provided that:
 - a. They are located on a lot of at least four (4) acres plus an additional land area of three thousand (3,000) square feet for each unit.
 - b. They have a minimum of four hundred (400) feet of frontage and are located within one thousand (1,000) feet of a state highway.
 - c. They are set back a minimum of one hundred (100) feet from any lot line.
- (2) Antique shops, provided there is no outside display of stock-in-trade.
- (3) Planned residential development in accordance with the provisions contained in article VI of this chapter.
- (4) Accessory uses and buildings.
- (5) Home occupations.
- (6) Where the boundary line of a zoning district divides a lot in single or joint ownership the regulations for either district may extend to the entire lot, but in no case shall any permitted use be extended more than seventy-five (75) feet into the zoning district which prohibits uses allowed in the abutting district. The provisions of this section

shall benefit only those lots shown on the Tax Maps of the City of Claremont as existing on the date of passage of this amendment [June 11, 1997]. The boundary line of a zoning district may not be extended under any circumstances beyond the boundary of the lot appearing on said tax maps. The city planning department shall keep on record for public use all tax maps referred to in this subsection.

- (7) Golf courses.

Renumber up to Sec 22-193.

Sec. 22-206. Permitted uses.

The following uses are permitted in the residential district I. Any uses not expressly permitted are prohibited, except those uses which may be allowed as special exceptions as set forth hereafter.

- (1) Single-family dwellings.
- (2) Parks and playgrounds.
- (3) Public or private nonprofit schools and public libraries.
- (4) Reserved.
- (5) Professional offices in residence, provided that it is located on a lot of at least twenty thousand(20,000) square feet and at least five (5) off-street parking spaces are provided.
- (6) Manufactured housing on individual lots for which a valid nonconforming use, including those granted by variances, existed on June 8, 1988.
- (7) Accessory uses and buildings.

Insert new section after Sec 22-206:

Sec 22-207. Conditional use permits.

The following uses may be permitted in the residential district I by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:

- a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

Renumber up to Sec 22-213.

Insert new section after Sec 22-226:

Sec 22-227. Conditional use permits.

The following uses may be permitted in the residential district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and another five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

Renumber Sec 22-228, 22-229, 22-230 and 22-231.

Sec. 22-296. Permitted uses.

The following uses are permitted in the business district II. Any uses not expressly permitted are prohibited, except those which may be allowed as special exceptions or by conditional use permit as set forth hereafter.

- (1) Any use permitted in the residential district II, other than uses permitted as special exceptions or by conditional use permit, and provided that dwellings are subject to the

lot size and area, yard, density and lot coverage requirements contained in sections 22-228 through 22-232.

- (2) Antique and secondhand shops.
- (3) Warehousing and distributing, truck terminals and repair shops.
- (4) Newspaper and printing establishments.
- (5) Radio and television transmitting stations and studios.
- (6) Automotive service stations, sales and repair.
- (7) Establishments from which sales are primarily from delivery trucks, excepting fuel sales.
- (8) Carpenter, cabinet, upholstery, sheet metal, plumbing, heating and sign painting shops.
- (9) Drive-in business where customers are served in their cars.
- (10) Building materials sales and storage and contractor's storage yards.
- (11) Feed and farm equipment sales.
- (12) Bottling plants for soft drinks.
- (13) Manufactured housing on individual lots for which a valid nonconforming use, including those granted by variances, existed on June 8, 1988.
- (14) Accessory uses and buildings.
- (15) Stores for the sale of goods at retail.
- (16) Business, professional, financial and governmental offices.
- (17) Service establishments, including appliance repairs, restaurants, dry cleaning establishments and the like.
- (18) Indoor theaters for dramatic or musical productions or motion pictures.
- (19) Hotels and motels.
- (20) Taverns, private clubs and indoor recreation facilities.
- (21) Public or private nonprofit clubs, lodges and halls.
- (22) Trade schools, professional schools or industrial schools.

Insert new section after Sec 22-297:

Sec. 22-298. Conditional Use Permits.

The following uses may be permitted in the business district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and another five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

Renumber through Sec 22-303.

Sec. 22-387. Table of uses.

		City Center Residential I	City Center Residential II	Professional Residential	Mixed Use District	City Center Business II	Additional Regulations Reference (refer to these sections for additional regulations)
Residential		CR-1	CR-2	PR	MU	CB-2	
	Single-family dwelling	P	P	P	CU	P	Sec. 22-387.1
	Duplex		CUP	CUP	CU	CUP	Sec. 22-387.1
	Multifamily dwelling		P	P	CU	P	Sec. 22-387.1
	Conversion of existing single-family to duplex	CU	CU	CU	CU	CU	Sec. 22-387.2
	Conversion of existing single-family or duplex to multifamily dwelling	CU	CU	CU	CU	CU	Sec. 22-387.2
	Accessory dwelling units	CU	CU	CU	CU	CU	Sec. 22-513

Accessory uses and buildings	P	P	P	P	P	
Manufactured housing on individual lots	P	P				Sec. 22-387.4
Planned residential development		SE				Sec. 22-387.5

Sec. 22-513. Accessory dwelling units.

An accessory dwelling unit (ADU):

- (1) Is allowed only by conditional use permit, according to sections 22-100 and 22-101, in any zoning district that allows single-family dwelling units:
 - a. The approved conditional use permit and its conditions of approval shall be recorded in the registry of deeds;
 - b. Only one (1) ADU shall be permitted per single-family dwelling unit.
- (2) Shall be allowed only on properties containing an owner-occupied single-family dwelling:
 - a. Owner must demonstrate on an annual basis that one (1) of the units is the owner's principal place of residence. A temporary absence by the property owner is allowed, provided the owner-occupied unit is not rented to or occupied by anyone other than the property owner during such absence;
 - b. The owner of a property containing an accessory dwelling may reside in either the principal or the accessory dwelling unit;
 - c. Prior to the issuance of a building permit to construct an ADU or any occupancy of an ADU, the owner shall execute and submit to the planning board for recording at the Sullivan County Registry of Deeds an acknowledgement of the owner occupancy requirement, in a form supplied by or acceptable to the planning board, which shall place all prospective purchasers on notice of the prohibition against renting out both units.
- (3) Shall be subsidiary in size and function to the principal dwelling unit and be consistent with the principal residential structure in appearance, height, design, colors, and materials and maintain aesthetic continuity with the principal dwelling unit as a single-family dwelling:
 - a. The ADU shall not occupy more than forty (40) percent of the gross living area of the existing residential structure. While an ADU's floor area may be less than seven hundred fifty (750) square feet, it is not required to be;
 - b. The ADU shall include not more than two (2) bedrooms;
 - c. The ADU may be located within or added to the principal structure, or in a detached structure; provided, however, that any alterations, enlargements, or extensions of the

- principal structure and/or detached structure may not alter the appearance of the principal structure or the property as a whole in a manner that would look like it was designed to accommodate more than one family;
- d. A functional interior doorway shall be provided between the ADU and the principal dwelling unit, which may be locked;
 - e. The ADU may use an existing exterior door as an entry, except new ADU entry doors shall not face the street;
 - f. The ADU, including any new construction or physical addition to create an ADU, shall comply with all existing dimensional requirements of this chapter but shall not extend beyond the front wall of the dwelling structure;
 - g. For the residents of the ADU there shall be at least one (1) extra on-site parking space located only in the rear or side yard, and there shall be no additional curb cut.
- (4) Shall be served by well and septic provisions which comply with New Hampshire Department of Environmental Services regulations, if the ADU is not served by public water and sewer.
- (5) An ADU that is within or attached to the principal dwelling unit shall not be considered to be an additional dwelling unit for the purposes of determining minimum lot size or development density of the property and no additional lot area is required for the addition of a detached ADU. A detached ADU shall meet the following minimum requirements:
- a. New construction must meet setbacks for the zoning district in which the ADU is located;
 - b. Minimum distance between the detached ADU and other structures on the lot shall be as determined by the building code.
- (6) Shall not be allowed in duplex or multi-family dwellings.
- (7) Shall not be attached to mobile homes or manufactured housing units.
- (8) Is not allowed in condominium developments.
- (9) Shall always be under the same ownership as the principal dwelling unit and shall not be converted into condominium or any other form of legal ownership distinct from the ownership of the principal dwelling unit.
- (10) In the CR-1 and CR-2 districts, maximum lot coverage with a new ADU shall be increased to 40%.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

deForest Bearse and Director Merrill introduced Ordinance 600 to the Council. Mayor Girard noted the prior work shop relative to the Ordinance and thanked Ms. Merrill and Ms. Bearse for their time.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to move forward with the second reading of Ordinance 600 on Council Meeting December 14th, 2022.

Assistant Mayor Matteau read the explanation of proposed action into record.

Roll call:

O'Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Ordinance 603 Maximum Residential Density in the R2 District

Means of providing additional housing without using more land, way to encourage additional housing

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #603

ZONING ORDINANCE AMENDMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Maximum density in Residential district II.

Revise a portion of Chapter 22, Zoning Ordinance, to provide for increased density in the Residential district II for multiple units on a single lot, as follows:

If Ord #600 is not adopted, amend Sec. 22-231 to read as follows:

Sec. 22-231. Maximum residential density.

The maximum residential density in the residential district II shall be one (1) dwelling unit per ten thousand (10,000) square feet of the total lot area, and an additional five thousand (5,000) square feet for each additional dwelling unit beyond the first (except for attached ADU units).

If Ord #600 is adopted, insert new section here:

Sec. 22-232. Maximum residential density.

The maximum residential density in the residential district II shall be one (1) dwelling unit per ten thousand (10,000) square feet of the total lot area, and an additional five thousand (5,000) square feet for each additional dwelling unit beyond the first (except for attached ADU units).

Renumber up to Sec 22-233.

Section 2. Maximum density in Residential district I for duplex conversions.

If Ord #600 is adopted, amend Sec. 22-207 to read as follows:

Sec 22-207. Conditional use permits.

The following uses may be permitted in the residential district I by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

If Ord #600 is not adopted, amend Sec 22-206 to read as follows:

Sec 22-206. Permitted Uses.

The following use are permitted in the residential district I. Any uses not expressly permitted are prohibited, except those uses which may be allowed by special exceptions as set forth hereafter.

- (1) Single-family dwellings.
- (2) Conversion of existing single-family homes to duplexes or multi-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with Sec 22-526 et seq., and that such parking does not violate the yard requirements contained in Sec 22-209.
- (3) Parks and playgrounds.
- (4) Public or private nonprofit schools and public libraries.
- (5) Reserved.

- (6) Professional offices in residence, provided that it is located on a lot of at least twenty thousand (20,000) square feet and at least five (5) off-street parking spaces are provided.
- (7) Manufactured housing on individual lots for which a valid nonconforming use, including those granted by variances, existed on June 8, 1988.
- (8) Accessory uses and buildings.

Section 3. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 4. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 5. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Batchelder and seconded by Assistant Mayor Matteau to move forward with the second reading of Ordinance 603 on Council Meeting December 14th, 2022.

Councilor Batchelder read explanation of proposed action into record.

Roll call:

O'Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 9-0

Ordinance 604 Foster Homes/Families

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #604

ZONING ORDINANCE AMENDMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Foster family homes and foster family group homes.

Revise and renumber portions of Chapter 22, Zoning Ordinance, to regulate and permit foster family homes and foster family group homes in the same manner as other single-family dwellings, rather than as child care uses regulated separately, as follows:

Sec. 22-1. Definitions.

Family shall mean any number of individuals living together as a single residential housekeeping unit occupying a dwelling unit, including foster families living as a family under RSA 170-E:25, provided that a group of not more than five (5) individuals not necessarily related by blood, marriage, fostering or adoption may be considered a family.

Sec. 22-212. Child care facilities.

The following regulations shall apply to child care facilities in residential district I:

(1) *Permitted uses.*

- a. Licensed family daycare home.

- (2) *Special exceptions.* The following uses may be permitted by the zoning board of adjustment, subject to the regulations contained in division 3 of article II of this chapter, as well as any other applicable regulations of this chapter or regulations of the state, and the following conditions and safeguards:

- a. Family Group Daycare Home

- (3) Such use shall comply with the lot size and area requirements contained in sections 22-208 through 22-211.

Sec. 22-232. Child care facilities.

The following shall apply to child care facilities in residential districts II:

(1) *Permitted uses:*

- a. Family daycare home;
- b. Family group daycare home.

- (2) *Special exceptions.* The following uses may be permitted by the zoning board of adjustment, subject to the regulations contained in division 3 of article II of this chapter, as well as any other applicable regulations of this chapter or regulations of the state, and the following conditions and safeguards:

- a. Reserved.
- b. Reserved.

- (3) Such use shall comply with the lot size and area requirements contained in sections 22-228 through 22-231.

Sec. 22-387. Table of uses.

Commercial		CR-1	CR-2	PR	MU	CB-2	
	Art galleries and arts and crafts shops			P	P	P	Sec. 22-387.6
	Automotive service stations, sales and repair					P	
	Bed and breakfast		P	P	CU		Sec. 22-387.7
	Building supply stores					P	
	Child care facilities						Sec. 22-387.8
	Family daycare home	P	P	P	P	SE	
	Family group daycare home	SE	SE	SE	SE	SE	
	Group child care center			SE	SE	SE	

Sec. 22-536. Child care facilities.

Off-street parking spaces shall be provided for child caring facilities as follows:

- (1) Family daycare home, two (2) spaces.

- (2) Family group daycare home, two (2) spaces plus one (1) additional space for each four (4) additional children for which such family group daycare home is licensed, for a total of four (4).
- (3) Group child care centers, two (2) spaces plus one (1) additional space for each four (4) additional children for which such group child care centers are licensed, for a total of four (4).
- (4) Group home, two (2) spaces plus one (1) additional space for each four (4) additional children for which such group home is licensed, for a total of four (4).

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Limoges and seconded by Councilor Stone to move forward with the second reading of Ordinance 604 on Council Meeting December 14th, 2022.

Councilor Limoges read explanation of proposed action into record.

Roll call:

O'Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Contois - yes

Mooshian - yes

Girard - yes
Motion carried 9-0

Resolution 2023-15 EPA Multipurpose Grant – Sugar River Land

RESOLUTION 2023-15

EPA Multipurpose Grant

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City Council approves the application for up to \$800,000 for a 2023 EPA Multipurpose Grant to be used on Sugar River land parcels for brownfield assessment, abatement and redevelopment planning; and

WHEREAS no matching local funds are required; and

WHEREAS if the City is awarded the EPA Multipurpose grant funds the City Council will accept the funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED THAT if the City is awarded the EPA Multipurpose grant funds the City Council will expend up to \$800,000.00 in grant funding for the purpose of targeted brownfields assessment, abatement, and redevelopment of the Sugar River land parcels with no impact on the tax rate;

BE IT FURTHER RESOLVED THAT the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (2/3 *Vote Required*).

A motion was made by Councilor O’Hearne and seconded by Councilor Koloski to accept Resolution 2023-15.

Councilor O’Hearne read resolution 2023-15 into the record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:
O’Hearne - yes
Batchelder- yes

Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

CSBCC Advisory Committee Proposal (City Manager/Director of Parks and Recreation)

Advisory Committee Proposal

Proposal Goal:

To establish a volunteer advisory committee, which works with the Director of Parks and Recreation to focus exclusively on the operational success of the Claremont Savings Bank Community Center.

Purpose of Advisory Committee:

The purpose of this committee is to offer guidance and suggestions pertaining to improvement of the overall functionality of the CSBCC facility. Members of this committee will be advocates of the community center and tasked with helping generate sustainable plans for better business practices, marketing strategies, improved facility programming offerings, and much more. This committee will be empowered to make formal recommendations to the Director of Parks and Recreation, who may use this support to help guide initiatives at CSBCC moving forward.

Functions:

The CSBCC will consist of five members and the Director of Parks & Recreation. Meetings will commence once the committee is formed. At that point, we will construct a recurring meeting schedule, intended to meet as needed, which will begin to address immediate priorities of the CSBCC in a timely fashion.

Candidates:

The ideal candidates for the CSBCC Advisory Committee will be Claremont residents, with a successful background in business, recreation, and/or fitness. Candidates must have a vested interest in helping make our local community center the best it can possibly be. Candidates' terms will expire every (2) years.

Selection Process:

Interested candidates should submit an application to Serve on a Board, Commission, Or Committee along with a letter addressed to the Director of Parks & Recreation, stating their interest in the committee and a synopsis of why they feel they will be a valuable member of the group. In conjunction, the City Manager and Director of Parks & Recreation will evaluate each candidate and recommend the five most suitable candidates for the advisory committee. Recommendations will be brought before the City Council to be formally appointed in order for the CSBCC Advisory Committee to be established.

Director Lawrence read through proposal for the Council.

Councilor Koloski is opposed to this advisory committee, and suggested an outside consultant.

Councilor Stone echoed Councilor Koloski's assessment and stated having no interest in any more committees.

Assistant Mayor Matteau, stated a firm was hired previously and created a plan, this plan was not followed. Assistant Mayor Matteau Suggests finding this plan and sharing it with Council.

A motion was made by Councilor Koloski and seconded by Councilor Stone to authorize the City Manager or designee to proceed with the RFP for a consultant to study and advise on current methods to increase revenue, memberships, and operational efficiency of the Claremont Savings Bank Community Center.

Roll call:

O'Hearne - yes

Batchelder- yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes
Contois - no
Mooshian - no
Girard - yes
Motion carried 7-2

Councilor Contois Conduct

A Motion was made by Councilor Stone and seconded by Councilor Limoges to conduct a hearing relative to Councilor Contois for the allegations of: Improper influence, Violation of Provision of Claremont City Charter, Article 3, Section 29 non-interference, and Dereliction of Duty for Failure to inform the Council of relative information that they possess while having a Council level discussion. Councilor Stone amended motion by adding a three-person advisory council nominated by council for fact finding and bringing back information back to Council.

Roll call:
O'Hearne - yes
Batchelder- yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 9-0

A Motion was made by Councilor Stone and seconded by Councilor Limoges to have Assistant Mayor Matteau, Councilor O'Hearne, and Councilor Batchelder to be the members of the City Council Ad Hoc Advisory Committee.

Roll call:
O'Hearne - yes
Batchelder- Abstain
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Contois - no

Mooshian - no
Girard - yes
Motion carried 6-2, 1 abstained

COMMITTEE REPORTS

None.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Mooshian suggested establishing an ethics committee for the need to have an unbiased group to fact find and come up with non-binding directives.

Councilor Koloski suggested joint meetings with the school board. Councilor Koloski would like to see a joint venture with the tech school to train EMS, Fire, and Police. Councilor Koloski asked that the lights in the City Hall hallway do not get shut off until after the meeting is over. Councilor Koloski would also like a follow-up on the Pleasant Street Cables.

CONSULTATION WITH LEGAL COUNSEL

None.

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3, II(d) – CONSIDERATION OF THE ACQUISITION, SALE OR LEASE OF REAL OR PERSONAL PROPERTY

Members Present:

Mayor Girard
Assistant Mayor Matteau
Councilor Contois
Councilor O’Hearne
Councilor Stone
Councilor Koloski
Councilor Limoges
Councilor Mooshian
Councilor Batchelder

Non-Members Invited to Attend Nonpublic Session

Yoshi Manale, City Manager

Motion to enter Nonpublic Session made by Assistant Mayor Matteau seconded by Councilor O’Hearne.

Specific Statutory Reason cited as foundation for the nonpublic session:

RSA 91-A:3, II(d) Consideration of the acquisition, sale or lease of real or personal property which, if discussed in public, would likely benefit a party or parties whose interests are adverse to those of the general community.

Roll Call Vote to enter nonpublic session: Majority vote required

Roll Call:

Councilor O’Hearne - yes
Councilor Batchelder - yes
Councilor Stone – yes
Assistant Mayor Matteau - yes
Councilor Koloski - yes
Councilor Limoges – yes
Councilor Contois – yes
Councilor Mooshian – yes
Mayor Girard-yes
Motion: PASSED

Entered nonpublic session at 8:40 p.m.

Description of Matters discussed:

Arrowhead property lease with Arrowhead Rec. Club (ARC), Wheelhouse has approached the City regarding leasing the lodge.

Motion to leave nonpublic session and return to public session by Councilor O’Hearne, seconded by Councilor Stone (Majority vote by roll call.)

Roll Call:

Councilor O’Hearne - yes
Councilor Batchelder - yes
Councilor Stone – yes
Assistant Mayor Matteau - yes
Councilor Koloski - yes
Councilor Limoges – yes
Councilor Contois – yes
Councilor Mooshian – yes

Mayor Girard-yes

Motion: PASSED

Public session reconvened at 9:12p.m.

Motion to adjourn at 9:13p.m. made by Councilor O’Hearne, and seconded by Councilor Batchelder.

Roll Call:

Councilor O’Hearne - yes

Councilor Batchelder - yes

Councilor Stone – yes

Assistant Mayor Matteau - yes

Councilor Koloski - yes

Councilor Limoges – yes

Councilor Contois – yes

Councilor Mooshian – yes

Mayor Girard-yes

Motion: PASSED

These minutes recorded by: Assistant Mayor Matteau

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council